ONE-OFF SHIURIM

Are Rabbinic Laws as Binding as the Torah?

Derech Hashem, Maamar HaIkarim

Sefer: Maamar HaIkarim by Rabbi Moshe Hayim Luzzatto (the Ramhal), printed at the end of Derech Hashem **Section:** Maamar HaIkarim, essay 10: the Oral Law, rabbinic enactments and fences **Shiur:** Part of Dayan Daniel Kada's Derech Hashem series at Tiferet Eyal, Thursday 28 July 2022

These notes are based on an automatic transcript of the recording.

Recap

This was planned as the last class of a project begun straight after Sukkot 2020. The Rabbi reviewed the tenth essay: the Oral Law is an essential part of the Torah, the explanation of the brief "lecture notes". Where there is no clear tradition, we use the 13 principles of interpretation. There are two kinds of asmakhta. The first hangs a transmitted law on a verse, as with the etrog: no one learned the etrog from "the fruit of a beautiful tree"; everyone knew it was an etrog and then found it in the words. The second is for laws the Sages made themselves, such as netilat yadayim. The Maharal says the verse is only a mnemonic; the Ramhal says it is a weaker support, but still intended by God.

Lo tasur: the Sages' authority

The Ramhal now turns to rabbinic misvot. In Parashat Shofetim the Torah commands, "do not turn aside from what they tell you, right or left." God's intention is that the courts can make decrees and enactments, and we are obliged to follow them. All their enactments, made to guard the Torah better and fulfil God's will, are agreed to by God.

The Rabbi explained that this refers to the courts of the time when there was a Sanhedrin: the great Sanhedrin of 71, the smaller courts of 23, and local courts with delegated powers. A local court could not, for example, create mukseh.

What can a rabbi do today?

A participant asked whether courts today can make new laws for new situations. The Rabbi said no. All a court can do today is apply established biblical and rabbinic law to the facts before it. When mobile phones appeared, rabbis discussed whether they may be used on Shabbat by applying existing prohibitions, such as the various views on the source of the electricity prohibition. But no one can say "don't use mobile phones because it's against the spirit of Shabbat". The spirit of Shabbat is not a halachic category; to make it binding requires a court with legislative power. Similarly, a court today that declares a certain concert forbidden

as too frivolous is giving advice, which may be respected, but it cannot create a prohibition. If you disregard it, you have not violated the Torah.

A participant asked about Rav Ovadia Yosef's ruling that the blessing on Shabbat candles should be said before lighting, against a long-standing custom in some communities. The Rabbi said this is a different matter. Most Rishonim, including the Sephardi ones, said to bless and then light. The other practice came from Ashkenazi authorities and spread to parts of the Middle East. Rav Ovadia was not enacting anything new but returning to the original sources. That is unlike a custom such as the second day of Yom Tov, established in the Gemara's time and accepted by everyone, which cannot be touched.

Another participant asked about Rabbi Eliezer and the oven, where a heavenly voice supported him. The Rabbi said that was a dispute about interpretation, the ritual status of the oven, and the rule is that interpretation is "not in heaven". It is not about making new laws or changing the text.

Fences around the Torah

The Ramhal adds that we have a tradition of making fences for the Torah, even from the time of Avraham, of whom God says he "kept My charge, My misvot, My statutes and My teachings". The Rabbi did not think this means Avraham literally kept every rabbinic law, but he made fences. God could have made these fences Himself; His will was that we make them.

The Rabbi gave examples of where he imagines the Sages would make new fences today. Someone keeping two days of Yom Tov while visiting Israel, surrounded by buses and people on phones, is almost bound to forget. Someone used to an eruv who flies to a town without one may well carry. In the past people rarely moved; today we travel constantly. The Sages once cancelled shofar and lulav on Shabbat, biblical misvot, in case someone carried them to an expert. Yet today we cannot make such fences. "We're in exile. We don't have our legislative body." We can only apply existing law, "however absurd it may be". He gave the example of stam yeinam, wine touched by a non-Jew, a decree whose reason applied in its day. "No one can have the audacity" to set it aside, though he was convinced that if we had a Sanhedrin today, it would be one of the first things they would lift.

Rabbinic and biblical: no difference?

Then comes what the Rabbi called "quite startling". The Ramhal writes that there is no difference between misvot written in the Torah and the obligations and decrees of the Sages. God's will is that we keep both alike. Violating a rabbinic prohibition is violating God's word, just as violating a biblical one is.

The only difference is the one the Sages themselves set: a doubt in biblical law is treated strictly, and a doubt in rabbinic law leniently. The Ramhal compares it to the differences between biblical laws themselves. Meat and milk cooked together is forbidden even to benefit from, while forbidden fat may be benefited from, yet no one calls one more important. Some sins carry karet and some lashes, but no one says, "I'll do the one with lashes." That is why the Talmud has whole chapters of detail on rabbinic laws like mukseh: in the Sages' eyes they were just as binding. Leniency in doubt is simply "the framework of the misvah", the way tefillin go between the eyes and a sukkah needs two walls and a handbreadth.

The Rabbi said this is a hiddush. The common understanding, and certainly the Rambam's, is that rabbinic misvot matter but less than biblical ones, which is why we are lenient in doubt. The Ramhal says they are absolutely equal. Perhaps, the Rabbi suggested, he felt people were lax about rabbinic misvot and wanted to underline the point. But the difficulty is that if every rabbinic violation is a breach of the Torah's "do not turn aside", it should carry lashes, and doubts should be treated strictly. "He's in a minority."

A participant asked: forced to choose between eating pork and eating lettuce with insects, what would you do? The group worked out that insects involve several biblical prohibitions, so that is no rabbinic example. The Rabbi gave a clearer one: meat and cheese that were never cooked together is only rabbinic, so one would choose that over pork. The last paragraph was left for Monday.

Summary

- "Do not turn aside" gave the Sanhedrin and courts of its time power to make binding decrees and fences.
- Rabbis today can apply existing law to new facts but cannot legislate new prohibitions.
- God wanted us to make fences for the Torah; without a Sanhedrin we cannot add or remove them.
- The Ramhal holds that rabbinic laws are as binding as biblical ones, differing only in how doubts are treated.
- The Rabbi called this a hiddush and a minority view, while agreeing that rabbinic laws must be taken just as seriously.

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